

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 159623/2013
Date Purchased: 01/16/2014

-----X
JACQUELINE FRANQUI,

Plaintiff,

-against-

THE CITY OF NEW YORK, and THE NEW YORK CITY
POLICE DEPARTMENT, and JONATHAN VIRTUOSO,

Defendants.
-----X

**SUMMONS with ECF
NOTIFICATIONS &
VERIFIED COMPLINT**

Plaintiff designates New York
County as the place of trial.

The basis of venue is:
Place of occurrence.

Plaintiff resides at:
1860 Lafayette Avenue
Bronx, NY 10473
County of Bronx

To the above named Defendants:

YOU ARE HEREBY SUMMONED to appear in the Supreme Court of the State of New York, County of New York, at the office of said Court at 60 Centre St, New York, New York, within the time provided by law as noted below and to file your answer to the Verified Complaint in this action and to serve a copy of your answer on the plaintiff's counsel within 20 days after the service of this summons if same is served upon you personally, or within 30 days if served other than personally. In case of failure to appear or answer, judgment will be taken against you by default for the relief demanded in the verified complaint.

**NOTICE OF COMMENCEMENT OF ACTION SUBJECT TO MANDATORY
ELECTRONIC FILING**

PLEASE TAKE NOTICE that the matter captioned above, which has been commenced by filing of the accompanying documents with the County Clerk, is subject to mandatory electronic filing pursuant to Section 202.5-bb of the Uniform Rules for the Trial Courts. This notice is being served as required by Subdivision (b) (3) of that Section.

The New York State Courts Electronic Filing System ("NYSCEF") is designed for the electronic filing of documents with the County Clerk and the court and for the electronic service of those documents, court documents, and court notices upon counsel and self-represented parties. Counsel and/or parties who do not notify the court of a claimed exemption (see below) as required by Section 202.5-bb(e) must immediately record their representation within the e-filed matter on the Consent page in NYSCEF. Failure to do so may result in an inability to receive electronic notice of document filings.

Exemptions from mandatory e-filing are limited to: 1) attorneys who certify in good faith that

they lack the computer equipment and (along with all employees) the requisite knowledge to comply; and 2) self-represented parties who choose not to participate in e-filing. For additional information about electronic filing, including access to Section 202.5-bb, consult the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center at 646-386-3033 or efile@courts.state.ny.us.

NOTICE REGARDING AVAILABILITY OF ELECTRONIC FILING SUPREME COURT CASES

PLEASE TAKE NOTICE that plaintiff(s)/petitioner(s) [defendant(s)/respondent(s)] in the case captioned above intends that this matter proceed as an electronically-filed case in the New York State Courts Electronic Filing System (“NYSCEF”) in accordance with the procedures therefor, set forth in Uniform Rule 202.5-b and described below. Under that Rule, filing and service of papers by electronic means cannot be made by a party nor can electronic service be made upon a party unless that party has consented to use of the System for the case in question. Each party served with this Notice must promptly file with the court and serve on all other parties either a consent or a declination of consent to electronic filing and service through NYSCEF for this case. (See Instruction # 2 below.)

General Information

Electronic filing offers significant benefits for attorneys and litigants, permitting documents to be filed with the County Clerk and the court and served, between or among consenting parties, by posting the documents on the NYSCEF Website, which can be done at any time of the day or night on any day of the week. There is no fee to use the NYSCEF System, whether for filing, service, or consultation of the electronic docket, nor is there a charge to print documents from the docket. Normal filing fees must be paid, but this can be done by credit or bank card on-line. For additional procedures and information, see Uniform Rule 202.5-b, any e-filing protocol that may have been promulgated by the court in question, and the NYSCEF Website at www.nycourts.gov/efile.

Instructions

1. Service of this Notice constitutes consent to e-filing and a statement of intent by the undersigned to use the NYSCEF System in this case. When an action or proceeding is being commenced through the NYSCEF System, this Notice must accompany service of the initiating papers.
2. Each party served with this Notice may consent to e-filing either: (i) by filing with the court and serving on all parties of record a consent to e-filing, or (ii) if an authorized e-filing user, by filing a consent electronically in the manner provided at the NYSCEF site. Parties who do not wish to consent must file and serve a written declination of consent. If one party or some but fewer than all parties consent, NYSCEF may be used by and between or among consenting parties.

3. Each participating attorney, unless already registered, or self-represented party must PROMPTLY create a NYSCEF account and obtain the confidential Filing User Identification Number and Password necessary to use the system. To create a NYSCEF account, go to www.nycourts.gov/efile, click the Create an Account link, and follow the instructions.

4. For additional information about NYSCEF, see the User's Manual and Frequently Asked Questions on the Website, or contact the court in question or the NYSCEF Resource Center (at 646-386-3033 or efile@courts.state.ny.us).

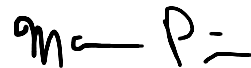
Defendants' addresses:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

THE NEW YORK CITY POLICE DEPARTMENT
100 Church Street
New York, New York 10007

POLICE OFFICER JONATHAN VIRTUOSO
c/o New York City Police Department
23rd Precinct- East Harlem
164 E 102nd St
New York, NY 10029

Dated: New York, New York
May 26, 2014



Maurice Pianko, Esq.
Attorney for Plaintiff
PIANKO LAW GROUP PLLC
55 Broad Street, Suite 13F
New York, New York 10004
Phone: (646) 801-9675
Facsimile: (646) 381-3612
Email: mpianko@gmail.com

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.: 159623/2013

-----X
JACQUELINE FRANQUI,

Date Purchased: 01/16/2014

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, and THE NEW YORK CITY
POLICE DEPARTMENT, and JONATHAN VIRTUOSO,

Defendants.

-----X

Plaintiff, by her attorneys, **PIANKO LAW GROUP PLLC**, complaining of the
Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT,
and JONATHAN VIRTUOSO, respectfully alleges, upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF JACQUELINE FRANQUI**

1. That at all times hereinafter mentioned, plaintiff **JACQUELINE FRANQUI** was and still is a resident of the County of Bronx, City and State of New York.
2. That the cause of action alleged herein arose in the County, City and State of New York.
3. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

4. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
5. That prior hereto on October 15, 2013 a Notice of Petition requesting leave to file a late Notice of Claim pursuant to General Municipal Law Section 50-e, stating among other things, a reasonable excuse to file such late Notice of Claim was submitted.
6. That prior hereto on February 21, 2014, a motion for leave to file a late Notice of Claim was granted by the Honorable Margaret A. Chan.
7. That prior hereto, on October 16, 2013, 41 days after the expiration of the 90-day filing period prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, and that thereafter the CITY OF NEW YORK refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.
8. That at all times hereinafter mentioned and upon information and belief, the Statutory 50-H hearing, pursuant to the General Municipal Law, was waived, due to the fact that no demand for such was made by the defendants.
9. That at all times hereinafter mentioned and upon information and belief, no Statutory 50-H hearing, pursuant to the General Municipal Law, has been demanded by the defendants.

10. That no physical examination of the plaintiff has been demanded by the defendants.
11. That on June 6, 2013, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JONATHAN VIRTUOSO.
12. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, employed POLICE OFFICER JONATHAN VIRTUOSO.
13. That on June 6, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JACQUELINE FRANQUI, was arrested by, but not limited to the defendant POLICE OFFICER JONATHAN VIRTUOSO.
14. That on June 6, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JACQUELINE FRANQUI, was restrained/put in handcuffs by, but not limited to, the defendant POLICE OFFICER JONATHAN VIRTUOSO.
15. That on June 6, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JACQUELINE FRANQUI, was kept in custody of the defendants.
16. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, while being in police custody the plaintiff, JACQUELINE FRANQUI, was assaulted and battered by defendants, including, but not limited

to POLICE OFFICER JONATHAN VIRTUOSO, while acting as agents, servants and/or employees of the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

17. That at all times hereinafter mentioned and upon information and belief, at the time force was used upon plaintiff, she was already held in custody.
18. That at all times hereinafter mentioned and upon information and belief, there was a use of force upon plaintiff.
19. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.
20. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief the defendants, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, who committed the aforementioned assault and battery upon the plaintiff, JACQUELINE FRANQUI, was acting within the scope of his employment with the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
21. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief plaintiff, JACQUELINE FRANQUI, did sustain injuries while in custody of THE NEW YORK CITY POLICE DEPARTMENT.
22. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause.
23. That on June 7, 2013, and at all times hereinafter mentioned and upon information

and belief, force used upon the plaintiff was without probable cause.

24. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff demonstrated excessive and unreasonable force.
25. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, there was force used upon the plaintiff although there was no imminent threat to the defendants.
26. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff was caused to suffer severe and serious injuries to her legs, broken tibia and fibula, and other injuries about diverse parts of the person.
27. By reason of said assault and battery, the plaintiff was caused to suffer severe and serious injuries to her legs, broken tibia and fibula, and other injuries about diverse parts of the person.
28. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.
29. By reason of said assault and battery, the plaintiff was caused to suffer great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.
30. That at all times hereinafter mentioned and upon information and belief as a result of the use of force the plaintiff was injured.
31. That on June 7, 2013, and at all times hereinafter mentioned and upon information

and belief, the plaintiff was transported from the 23rd Precinct by and while in custody of the defendants, to the Metropolitan Hospital Center located at 1901 1st Ave, New York, NY.

32. By reason of said assault and battery, the plaintiff was transported from the 23rd Precinct by and while in custody of the defendants, to the Metropolitan Hospital Center located at 1901 1st Ave, New York, NY.
33. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center due to injuries warranting the need for medical attention.
34. By reason of said assault and battery the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center due to injuries warranting the need for medical attention.
35. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center while in custody of the NEW YORK CITY POLICE DEPARTMENT.
36. By reason of said assault and battery the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center while in custody of the NEW YORK CITY POLICE DEPARTMENT.
37. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center, where she was treated for various injuries to her body.

38. By reason of said assault and battery the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center, where she was treated for various injuries to her body.
39. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the plaintiff where she was treated for various injuries to her body, mainly the severe injuries to plaintiff's leg, broken tibia and fibula.
40. By reason of said assault and battery the plaintiff was transported from the 23rd Precinct to the Metropolitan Hospital Center, where she was treated for various injuries to her body, mainly the severe injuries to plaintiff's leg, broken tibia and fibula.
41. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, plaintiff did suffer breaks of both tibia and fibula while in custody of the defendant, THE NEW YORK CITY POLICE DEPARTMENT.
42. By reason of said assault and battery the plaintiff did suffer breaks of both tibia and fibula while in custody of the defendant, THE NEW YORK CITY POLICE DEPARTMENT.
43. That at all times hereinafter mentioned and upon information and belief, THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, conducted an investigation into the aforesaid matter.
44. By reason of said assault and battery the defendants, THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, conducted an investigation into the aforesaid matter.

45. That at all times hereinafter mentioned and upon information and belief, there was an investigation conducted relative to the arrest of the plaintiff.
46. By reason of said assault and battery, there was an investigation conducted relative to the arrest of the plaintiff.
47. That at all times hereinafter mentioned and upon information and belief, the Captain of the 23rd Precinct took action to call the New York City Police Department Internal Affairs Bureau (“IAB”) relative to the occurrence and injuries of the plaintiff while in custody.
48. By reason of said assault and battery, the Captain of the 23rd Precinct took action to call the New York City Police Department Internal Affairs Bureau (“IAB”) relative to the occurrence and injuries of the plaintiff while in custody.
49. That at all times hereinafter mentioned and upon information and belief, the Captain of the 23rd Precinct launched a complaint with the New York City Police Department Internal Affairs Bureau (“IAB”).
50. By reason of said assault and battery the Captain of the 23rd Precinct launched a complaint with the New York City Police Department Internal Affairs Bureau (“IAB”).
51. That at all times hereinafter mentioned and upon information and belief, there was a statement taken from Captain of the 23rd Precinct, as part of the investigation.
52. By reason of said assault and battery, there was a statement taken from Captain of the 23rd Precinct, as part of the investigation.
53. That at all times hereinafter mentioned and upon information and belief, Sergeant

Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation into the aforesaid matter.

54. By reason of said assault and battery, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation into the aforesaid matter.
55. That at all times hereinafter mentioned and upon information and belief, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation as to the cause of such injuries of the plaintiff.
56. That at all times hereinafter mentioned and upon information and belief, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation as to whether there was excessive force used by, but not limited to, the defendant POLICE OFFICER JONATHAN VIRTUOSO.
57. That at all times hereinafter mentioned and upon information and belief, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation as to the cause of such injuries of the plaintiff and the excessive force used by, but not limited to, the defendant POLICE OFFICER JONATHAN VIRTUOSO, working within the scope of his employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
58. By reason of said assault and battery, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”), started an investigation as to the cause of such injuries of the plaintiff and the excessive force used by, but not limited to,

the defendant POLICE OFFICER JONATHAN VIRTUOSO, working within the scope of his employment and authority with defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

59. That at all times hereinafter mentioned and upon information and belief, the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did take statement(s) of the of New York City Police Department Internal Affairs Bureau (“IAB”) relative to the aforesaid matter.
60. That on or around June 13, 2013, and at all times hereinafter mentioned and upon information and belief, Sergeant Breheny, of New York City Police Department Internal Affairs Bureau (“IAB”) emailed plaintiff’s attorney to set up an interview with the plaintiff and her counselor.
61. That at all times hereinafter mentioned and upon information and belief, there was an interview scheduled by Sergeant Breheny of IAB with the plaintiff and Jeffrey Silbermann to take place at the 23rd Precinct.
62. That at all times hereinafter mentioned and upon information and belief said interview was scheduled for August 19, 2013.
63. That on August 19, 2013 and at all times hereinafter mentioned and upon information and belief, Jeffrey Silbermann did appear at the 23rd Precinct at the scheduled time.
64. That on August 19, 2013 and at all times hereinafter mentioned and upon information and belief, Sergeant Breheny of IAB did meet Jeffrey Silbermann at the 23rd Precinct.

65. That on August 19, 2013 and at all times hereinafter mentioned and upon information and belief, Sergeant Breheny of IAB did meet Jeffrey Silbermann at the 23rds Precinct, with the view toward conducting an interview of the plaintiff.
66. That on August 19, 2013 and at all times hereinafter mentioned and upon information and belief, officer Sergeant Breheny of IAB, did not conduct such interview of the plaintiff.
67. That on August 19, 2013 and at all times hereinafter mentioned and upon information and belief, officer Sergeant Breheny of IAB, did not conduct such interview of the plaintiff due to the failure of the Department of Corrections to produce the plaintiff from the custody.
68. That at all times hereinafter mentioned and upon information and belief, the officers from IAB did take a statement, whether written or other, of the defendant POLICE OFFICER JONATHAN VIRTUOSO.
69. That at all times hereinafter mentioned and upon information and belief, the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did take a statement, whether written or other, of the defendant POLICE OFFICER JONATHAN VIRTUOSO.
70. That at all times hereinafter mentioned and upon information and belief, the New York City Police Department Internal Affairs Bureau (“IAB”) engaged in disciplinary proceedings in the abovementioned matter.
71. That at all times hereinafter mentioned and upon information and belief, the New

York City Police Department Internal Affairs Bureau (“IAB”) rendered a decision in the abovementioned matter.

72. That at all times hereinafter mentioned and upon information and belief, the New York City Police Department Internal Affairs Bureau (“IAB”) did issue a final report in the abovementioned matter.

73. That at all times hereinafter mentioned and upon information and belief, the New York City Police Department Internal Affairs Bureau (“IAB”) rendered a decision without an interview of the plaintiff.

74. That at all times hereinafter mentioned and upon information and belief, the New York City Police Department Internal Affairs Bureau (“IAB”) rendered a decision in the form of a written instrument.

75. That at all times hereinafter mentioned and upon information and belief the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, did charge the plaintiff, JACQUELINE FRANQUI, with the crime of escape.

76. That at all times hereinafter mentioned and upon information and belief the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, did charge the plaintiff, JACQUELINE FRANQUI, with the crime of attempted escape.

77. That at all times hereinafter mentioned and upon information and belief the

defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, did charge the plaintiff, JACQUELINE FRANQUI, with the crime of escape and/or attempted escape after she sustained injuries.

78. That at all times hereinafter mentioned and upon information and belief, charge of escape was not included in the initial police report.
79. That at all times hereinafter mentioned and upon information and belief the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, did amend or supplement their initial arrest charges after plaintiff was in custody.
80. That at all times hereinafter mentioned and upon information and belief the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including, but not limited to POLICE OFFICER JONATHAN VIRTUOSO, did amend or supplement their initial arrest charges to include attempted escape and/or escape.
81. That at all times hereinafter mentioned and upon information and belief plaintiff's charges as to attempted escape and/or escape were dismissed in the criminal court.
82. That at all times hereinafter mentioned and upon information and belief, the defendants did not charge the plaintiff with resisting arrest.
83. That at all times hereinafter mentioned and upon information and belief, no assault and/or weapon charge were brought against the defendant.

84. That at all times hereinafter mentioned and upon information and belief, the plaintiff was not a threat of bodily harm to the defendants.
85. That at all times hereinafter mentioned and upon information and belief, no notice was given to any employee of the 23rd Precinct that the plaintiff was a threat of bodily harm to those around her.
86. That at all times hereinafter mentioned and upon information and belief, while in custody of THE NEW YORK CITY POLICE DEPARTMENT, plaintiff did remain restrained.
87. That at all times hereinafter mentioned and upon information and belief, while in custody of THE NEW YORK CITY POLICE DEPARTMENT, plaintiff did remain in a secured area.
88. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, while plaintiff was in custody of THE NEW YORK CITY POLICE DEPARTMENT, there was no female officer available.
89. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, while plaintiff was in custody of THE NEW YORK CITY POLICE DEPARTMENT, there was no effort by the defendants to seek for a female officer to assist with those necessities that were peculiar to a female prisoner.
90. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, while plaintiff was in custody of THE NEW YORK CITY POLICE DEPARTMENT, there was no female officer assigned to escort the

plaintiff to the lavatory.

91. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, while plaintiff was in custody of THE NEW YORK CITY POLICE DEPARTMENT, offensive words transpired from defendant POLICE OFFICER JONATHAN VIRTUOSO due to plaintiff's insistence to have a female officer accompany her to the bathroom.
92. That on June 7, 2013 at all times hereinafter mentioned and upon information and belief, the 23rd Precinct had a limited number of available officers on duty due to the "Puerto-Rican Day."
93. That at all times hereinafter mentioned and upon information and belief, POLICE OFFICER JONATHAN VIRTUOSO and the plaintiff came into physical contact with each other.
94. That at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has previously been the subject of prior assaults.
95. That at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been the subject of prior disciplinary proceedings.
96. That at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been investigated upon in other incidences/matters.
97. That at all times hereinafter mentioned and upon information and belief, the

defendant, POLICE OFFICER JONATHAN VIRTUOSO, has a history of an excessive use of force while being employed by the defendants THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

98. That at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has a history of prior inappropriate conduct.

99. That at all times hereinafter mentioned and upon information and belief, the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been known to have caused injuries to others in custody.

100. By the reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENCE
ON BEHALF OF JACQUELINE FRANQUI**

101. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “100” inclusive with the same force and effect as if more fully set forth at length herein.

102. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JONATHAN VIRTUOSO were negligent, reckless and careless in assaulting, battering and in violating the civil rights of the plaintiff, JACQUELINE FRANQUI.

103. As the result of said negligence, the plaintiff, JACQUELINE FRANQUI, became

sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of the person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

104. That the defendants their servants/agents and/or employees were negligent in failing to; properly effectuate the arrest of; properly take into custody; properly restrain; properly secure; to supervise; in allowing/permitting harm to come to the plaintiff while in custody of THE NEW YORK CITY POLICE DEPARTMENT; in allowing/permitting plaintiff to be struck, assaulted and/or battered; in breaking the leg and bones of the plaintiff; in using excessive force; in properly hiring, screening and/or restricting their employees; in allowing the continuation of duty of officers who have violated the standards, protocols, in regulating THE NEW YORK CITY POLICE DEPARTMENT; in failing to reprimand, remove and suspend the officers whom they had prior notice of prior misconduct and/or improper use of force; in failing to timely seek medical treatment and/or bring to the attention of the authorities and/or medical experts the injuries that were caused while claimant was in custody of THE NEW YORK CITY POLICE DEPARTMENT; in the intentional wanton, malicious infliction of harm to the plaintiff; in the attempt to cover up the misconduct of the defendants; in permitting, creating and allowing to create a false police report; in failing to correct same after acquiring knowledge of its meritless allegations; in using force when no threat existed; in using excessive force; in negligently performing duties of THE NEW YORK CITY POLICE

DEPARTMENT; in failing to properly staff the 23rd Precinct; in failing to remedy, restrict, reassign officers after having due notice of their innapriorpate behaviors and/or potential of danger for those in custody; in failing to oversee and protect those in custody; in permitting/allowing an appropriate, unsafe condition to exist at the 23rd Precinct; in covering up the behavior that caused injuries to the plaintiff; in alleging and charging baseless crimes to justify injuries inflicted on the plaintiff; in inappropriate behaviors including, but not limited to, unreasonable force, excessive force, inappropriate use language, offensive language; in failing to have a psychological and mental evaluation of officers whose behaviors have been found justifiably inappropriate; in failing to screen/evaluate and medically determine the fitness of officers who are serving THE NEW YORK CITY POLICE DEPARTMENT; in the alleging of violation of criminal statutes and penal laws that were in fact unjustified and asserted only in an attempt to justify the harm that was inflicted upon the plaintiff; in failing to have female officers who could properly escort and/or attend those necessities that were peculiar to a female prisoner; in failing to have adequate personnel available in light of the “Puerto-Rican Day” and the conditions then and there prevailing; in failing despite the captain having due notice of the misconduct of the above-named officer, to remove and/or prevent him from being in contact with the plaintiff; in failing to justify force when not necessary; in its willful, wanton and malicious conduct in the treatment and protection of the

plaintiff in custody and in otherwise being negligent.

105. Upon information and belief, the aforesaid incident was caused by reason of the negligence of the defendants, without any negligence on the plaintiff contributing thereto.

106. That this action falls within one or more of the exceptions set forth in CPLR §1602.

107. By the reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JACQUELINE FRANQUI**

108. The plaintiff repeats and realleges each and every allegation set forth above numbered “11” through “107” inclusive with the same force and effect as if more fully set forth at length herein.

109. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JONATHAN VIRTUOSO, who assaulted, battered and violated the civil rights of the plaintiff, JACQUELINE FRANQUI.

110. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendant, POLICE OFFICER JONATHAN VIRTUOSO, and continued to employ him and allowed him to be in

contact with the public at large.

111. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has previously been the subject of prior assaults, and continued to employ him and allowed him to be in contact with the public at large.
112. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been the subject of prior disciplinary proceedings, and continued to employ him and allowed him to be in contact with the public at large.
113. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been the subject of prior disciplinary proceedings, and continued to employ him and allowed him to be in contact with the public at large.
114. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been investigated upon in a different matter, and continued to employ him and allowed him to be in contact with the public at large.
115. That the defendants, THE CITY OF NEW YORK and THE NEW YORK

CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has a history of an excessive use of force while being employed , and have continued to employ him and allowed him to be in contact with the public at large.

116. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has a history of of prior inappropriate conduct, and have continued to employ him and allowed him to be in contact with the public at large.

117. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, had prior knowledge that the defendant, POLICE OFFICER JONATHAN VIRTUOSO, has been known to have caused injuries to others in custody , and have continued to employ him and allowed him to be in contact with the public at large.

118. By the reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF JACQUELINE FRANQUI

119. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “118” inclusive with the same force and effect as if more

fully set forth at length herein.

120. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JONATHAN VIRTUOSO, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.
121. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JACQUELINE FRANQUI.
122. That as a result of said intentional and negligent acts, the plaintiff, JACQUELINE FRANQUI, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.
123. By reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION FOR MALICIOUS PROSECUTION ON BEHALF OF JACQUELINE FRANQUI

124. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "123" inclusive with the same force and effect as if more fully set forth at length herein.
125. That on June 7, 2013, and at all times hereinafter mentioned and upon information

and belief, defendant POLICE OFFICER JONATHAN VIRTUOSO, within the scope of his employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

126. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the defendants issued a report to cover up the true facts and circumstances.

127. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, defendant POLICE OFFICER JONATHAN VIRTUOSO, within the scope of his employment, without probable cause, created and submitted a police report charging the plaintiff with escape as to excuse his excessive and unreasonable use of force.

128. That at all times hereinafter mentioned and upon information and belief, defendant POLICE OFFICER JONATHAN VIRTUOSO, within the scope of his employment, without probable cause, amended and submitted police report charging the plaintiff with escape or /and attempted escape.

129. That at all times hereinafter mentioned and upon information and belief, defendant POLICE OFFICER JONATHAN VIRTUOSO, within the scope of his employment, without probable cause, amended and submitted police report charging the plaintiff with escape or /and attempted escape as to excuse his excessive and unreasonable use of force.

130. That at all times hereinafter mentioned and upon information and belief,

defendant POLICE OFFICER JONATHAN VIRTUOSO, within the scope of his employment, without probable cause, submitted an erroneous police report stating that no force was used upon plaintiff.

131. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, the defendants issued a report stating that plaintiff sustained no injuries.
132. That at all times hereinafter mentioned and upon information and belief, the police report stating that no force was used upon plaintiff, submitted by POLICE OFFICER JONATHAN VIRTUOSO, was contradicted and disproven by the hospital record from the Metropolitan Hospital Center.
133. That on June 7-6, 2013, and at all times hereinafter mentioned and upon information and belief, defendants POLICE OFFICER JONATHAN VIRTUOSO, was acting within the scope of his employment, maliciously prosecuted the plaintiff.
134. That on June 7, 2013, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.
135. By reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN SIXTH CAUSE OF ACTION FOR CIVIL RIGHTS
VIOLATION ON BEHALF OF JACQUELINE FRANQUI**

136. The plaintiff repeats and realleges each and every allegation set forth above numbered “1” through “135” inclusive with the same force and effect as if more fully set forth at length herein.
137. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JONATHAN VIRTUOSO, were acting under the color of law and within the scope of their authority, assaulted and battered the plaintiff, JACQUELINE FRANQUI, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.
138. The defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JONATHAN VIRTUOSO, acting under color of law and within the scope of their authority, deprived the plaintiff, JACQUELINE FRANQUI, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.
139. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.
140. That the assault and battery was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.
141. That the deprivation by the defendants of plaintiffs civil rights was a result of said defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE

DEPARTMENT, including but not limited POLICE OFFICER JONATHAN VIRTUOSO, acting under color of law and within their authority as law enforcement officers within the employ of defendants, THE NEW YORK CITY POLICE DEPARTMENT.

142. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, including but not limited to POLICE OFFICER JONATHAN VIRTUOSO, were not acting with immunity when they deprived plaintiff of his civil rights.

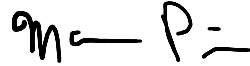
143. That the defendants' actions were not privileged or immune.

144. By the reason of the foregoing, the plaintiff, JACQUELINE FRANQUI, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of

all lower Courts on the **Fifth** Cause of Action; plaintiff, JACQUELINE FRANQUI, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

Dated: New York, New York
May 26, 2014



Maurice Pianko, Esq.
Attorney for Plaintiff
PIANKO LAW GROUP PLLC
55 Broad Street, Suite 13F
New York, New York 10004
Phone: (646) 801-9675
Facsimile: (646) 381-3612
Email: mpianko@gmail.com

ATTORNEY'S VERIFICATION

MAURICE S. PIANKO, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury: I am counsel to the Plaintiff in this action, that I have read the annexed verified complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true.

The grounds of my information and the sources of my belief are conversations with the client and close review of their records and files.

I am making this affirmation since plaintiff does not reside in the county where my firm has its office.

DATED: New York, New York
May 26, 2014



MAURICE PIANKO
Attorney for Plaintiff
PIANKO LAW GROUP PLLC
55 Broad Street, Suite 13F
New York, New York 10004
Phone: (646) 801-9675
Facsimile: (646) 381-3612
Email: mpianko@gmail.com

Index No.: 159623/2013
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

JACQUELINE FRANQUI,

Plaintiff,

-against-

THE CITY OF NEW YORK, and THE NEW YORK CITY POLICE DEPARTMENT, and
JONATHAN VIRTUOSO,

Defendants.

SUMMONS WITH ECF NOTIFICATIONS & VERIFIED COMPLAINT

MAURICE PIANKO, ESQ.
Attorney for Plaintiff
PIANKO LAW GROUP PLLC
55 Broad Street, Suite 13F
New York, New York 10004
Phone: (646) 801-9675

ATTORNEY'S CERTIFICATION. Pursuant to 22 NYCRR 130-1.1, upon reasonable inquiry under the circumstances, I certify that the presentation of these papers or contentions therein is not frivolous.

Dated: May 26, 2014

MAURICE PIANKO, ESQ

SERVICE OF A COPY OF THE WITHIN IS HEREBY ADMITTED.

Dated: May ____, 2014

TO:
SEE SUMMONS